Universidad de Alcalá

COURSE DESCRIPTION

INTERNATIONAL LABOUR LAW

Degree in Law

University of Alcala

Academic Year 2026/2027

Optional and cross-cutting–First Semester

COURSE DESCRIPTION

Name:	International Labour Law
Code:	400077
Degree:	Degree in Law
Department and Academic Discipline:	Department of Law Science Labour Law and Social Security
Type:	Optional and cross-cutting
ECTS (European Credit Transfer System) Credits:	6
Year and Semester:	First semester
Instructors:	Ph. D. Prof. Tatsiana Ushakova Ph. D. Prof. José Luis Gil y Gil
Tutorial Schedule:	Individual: at the teacher's discretion Groups: To be scheduled in class
Language of Instruction:	English

1. INTRODUCTION

International Labour Law (6 ECTS credits) is particularly recommended for students pursuing degrees in Law, Business Administration, Tourism, and other Social Science disciplines. A prior understanding of the basic concepts of Labour Law and International Law, along with solid English language skills, is advisable to ensure successful engagement with the course content.

This course provides a comprehensive overview of the international dimension of contemporary Labour Law. It is structured into three main sections: General Framework of International Labour Law; Labour Law within the United Nations System, and International Labour Regulation by the Council of Europe

Each part explores key topics relevant to International Labour and Social Law in the context of globalization. These include the internationalization of labour regulation, the sources and institutions of International Labour Law, core principles and fundamental rights at work, international legal instruments addressing working conditions and employment, social protection mechanisms, and labour migration on a global scale.

The course aims to equip students with a solid conceptual foundation, enabling them to navigate professional environments with a well-informed understanding of labour relations and social security from an international perspective. This knowledge is particularly relevant in today's context of globalization, economic interdependence, and growing international labour mobility. As the course is delivered in English—the predominant language in international legal and economic exchanges—it offers students a valuable opportunity to develop communication skills essential for cross-border professional practice.

Although the course adopts a theoretical framework, it consistently emphasizes the practical application of knowledge. This dual approach enhances students' expertise and fosters deeper learning. Students are encouraged to draw on their existing knowledge and life experiences, which are transformed into technical insights through engagement with real-world legal cases. Where possible, seminars will be organized to promote student participation, critical discussion, and teamwork. These sessions aim to develop key skills such as the ability to summarize complex information, engage in analytical reasoning, and collaborate effectively.

Additionally, the course serves as an introduction to career and internship opportunities in international organizations such as the United Nations (UN), the International Labour Organization (ILO), and the Council of Europe. These institutions seek candidates who demonstrate the highest standards of professional competence, efficiency, integrity, strong client orientation, and multilingual proficiency. The ILO, for example, offers training and employment opportunities across several categories: local service staff, internationally recruited professionals, short-term and temporary staff, external collaborators, and interns. Special attention is given to the ILO International Training Centre, which actively encourages applications from qualified candidates from underrepresented regions—including Africa, the Arab States, and Asia and the Pacific.

Summary:

International Labour Law is an elective, cross-disciplinary course (6 ECTS) that addresses key aspects of global labour regulation. It reflects the ongoing processes of internationalization and globalization affecting national legal systems. The course is structured into three parts: The general framework of International Labour Law, labour regulation under the United Nations, and the role of the Council of Europe in setting international labour standards. It combines theoretical insight with practical engagement and is best suited for students with prior knowledge of fundamental legal concepts and sources.

2. SKILLS

General skills:

1. Analysing, understanding and summarising theoretical information.
2. Engaging in reflective, critical and autonomous learning.
3. Solving legal problems and applying theoretical knowledge to practical cases by identifying conflicts.

4. Developing and defending positions through arguments and legal reasoning.

5. Developing the social skills needed for teamwork, cooperation and collaboration and understanding the difficulties and benefits inherent in collaborative work.

6. Applying the skills needed for legal information.

7. Acquiring the ability to engage in self-criticism.

8. Developing skills related to written and oral communication.

9. Developing the ability to integrate and summarise knowledge.

Specific skills:

1. Acquiring basic knowledge in the field of International Labour Law by referring to appropriate reading materials. Keeping abreast of the latest developments in technology and the legal and scientific fields.

2. Analysing and summarising information and studying the theoretical content of the discipline using reading materials published in English.

3. Problem-solving and the practical application of knowledge by interpreting rules and legal arguments in written and oral exercises. These activities may be done individually or in groups.

4. Being able to make critical judgements about current labour law.

5. Acquiring the autonomous learning skills needed for further study. The knowledge that students acquire on this module will allow them to work in research, in the professional field (legal advice, legal representation of parties involved in labour relations, etc.) in the civil service (e.g. the Labour and Social Security Inspectorate, the technical section of the Social Security Department, etc.) or as officials in various international organisations such as the UN or, in particular, the ILO.

Transversal abilities:

- Demonstration of digital knowledge.

- Commitment to the SDGs, with special attention to those related to decent work, environmental sustainability, diversity and gender perspective.

3. SYLLABUS

Module Contents (The individual units may be further clarified if necessary)	Total credits

Part I. General Framework: Unit 1. Internationalization of Labour Law. Unit 2. International Sources of Labour Law. Unit 3. Actors of Labour Law in the International Sphere.	2 cr.
Part II. Labour Law of the United Nations: Unit 1. Labour Norms of the UN. Unit 2. Labour Standards and Human Rights at Work of the ILO. Unit 3. International Migration Law and the ILO.	2 cr.
Part III. International Labour Regulation of the Council of Europe: Unit 1. Labour Regulation of the Council of Europe. Unit 2. Labour Jurisprudence of the European Court of Human Rights.	2 cr.

Teaching Schedule (Optional)

Week / Session	Syllabus
1st	• **Part I. General Framework**
2nd	• Continued
3rd	• Continued
4th	• Continued
5th	• Continued
6th	• **Part II. Labour Law of the United Nations**
7th	• Continued
8th	• Continued
9th	• Continued
10th	• Continued
11th	• **Part III. International Labour Regulation of the Council of Europe**
12th	• Continued
13th	• Continued
14th	• Continued
15th	• Continued

4. TEACHING- LEARNING METHODOLOGY. PRACTICAL WORK.

4.1. Distribution of Credits (In hours)

Number of Classroom Hours:	45 (Classes in large and small groups)
Number of Hours of Independent Work:	105(Independent study, preparation for activities, exams and on-line activities).
Total Number of Hours	150

4.2.Methodological strategies, materials and didactic resources

Independent Work	Reading Finding appropriate sources of information Case study and theoretical exercises Group meetings
Classwork	Introductory classes explaining core concepts and the conceptual framework of units Group sessions focused on discussion of conceptual definitions and debate Seminars for conceptual analysis and problem solving. Case study sessions
Tutorials	Group tutorials and individual meetings

5. ASSESSMENT: Procedures, assessment criteria and grading system

Assessment criteria

A) Continuous assessment system: This is the preferred method of assessment in the standard examination session (i.e. when students are being assessed for the first time). Therefore, it is the method that is normally used, except in the case of students who are recognized as being eligible for the final exam.

The continuous assessment system will be based on students' engagement in a range of activities, including class presentations, case analyses, theoretical and practical exercises, and participation in debates (60%), together with two assessment tests comprising both multiple-choice and essay-style questions (40%).

In order to be eligible for continuous assessment students must attend at least 80% of classes.

Students who do not inform the Faculty of Law that they wish to opt out of the continuous assessment option will be considered as having failed to participate in the assessment process for the module and will not be allowed to attend the final exam.

Students who choose the continuous assessment option and don't comply with the basic requirements of attendance and participation or who make a unilateral decision to opt out of the continuous assessment system will be given a 'fail' result.

B) Final assessment system: In the standard examination session this method of assessment is only available to students who have been recognized as eligible for the final exam in accordance with the assumptions and conditions that are expressly stipulated in the regulations governing learning assessment procedures, adopted by the Governing Council of the University of Alcala. Therefore, students must apply in writing to the Dean in the first two weeks of teaching, explaining why they cannot participate in the continuous assessment process.

In the repeat examination session all students are assessed by means of the final assessment system.

The final assessment is a written exam with theoretical and practical components.

Assessment Criteria

- Knowledge of the core concepts within each section of the syllabus.

- Ability to apply theoretical knowledge in practice.

- Originality, accuracy and clarity of expression in the exam, practical sessions, presentations and debates.

- Commitment to the SDGs, especially those related to decent work, environmental sustainability, diversity and gender perspective.

- Use of recommended reading materials.

- Participation in theory and practical sessions, seminars and trials.

Grading System

According to the Royal Decree 1125/2003, which entered into force on 5 September and which regulates the Diploma Supplement, the grading system should use the following scale, which applies both numerical (with one decimal) and qualitative marks:

0.0 – 4.9 FAIL
5.0 – 6.9 PASS
7.0 – 8.9 MERIT
9.0 – 10 DISTINCTION
9.0 – 10 STARRED DISTINCTION (limited to 5% of students)

A) The continuous assessment method is based on the following criteria:

a) The final mark is the average of the marks obtained in individual course units, which are assessed by means of quizzes, exercises, assignments and presentations.

b) Attendance and high-quality participation in sessions where students give presentations, engage in debate and defend work produced can add up to 1 points to the final grade.

c)Personal interviews will be held at the end of each course unit when it is considered appropriate for determining the final mark.

B) The final exam takes into account the following criteria:

a) Theoretical component: 60% of the mark.

b) Practical component: 40% of the mark.

The teaching-learning methodology and the assessment process will be adjusted, when necessary, with the guidance of the Diversity Unit, to apply curricular adaptations for students with specific needs.

Information note

During the performance of the assessment process, the guidelines set out in the Regulation establishing the Rules of Coexistence of the University of Alcala must be followed, as well as the possible implications of irregularities committed during these assessments, including the consequences for committing academic fraud according to the Disciplinary Regime Regulations of the Students of the University of Alcala.

6. RECOMMENDED READING

BACCHETTA, MARC; JANSEN, MARION (eds.) (2011), *Making Globalization Socially Sustainable*, World Trade Organization and International Labour Office, Geneva, 316 pp.

CASALE, GIUSEPPE (2020), *Fundamentals of International Labour Law,* 2nd ed., G. Giappichelli Editore, ITCILO, Torino, 302 pp.

GIL Y GIL, JOSÉ LUIS; USHAKOVA, TATSIANA (2023), *Social Justice as Expressed in International Labour Standards. Documents and Materials,* 2nd ed., Juruá, Curitiba, 403 pp.

RODGERS, GERRY; LEE, EDDY; SWEPSON, LEE; VAN DAELE, JASMIEN (2009), *The ILO and the Quest for Social Justice, 1919-2009*, Geneva, 272 pp.

SERVAIS, MICHEL (2022), *International Labour Law: International Labour Standards,* 7th Edition, Kluwer Law International, 372 pp.

WORLD COMMISSION ON THE SOCIAL DIMENSION OF GLOBALIZATION (2004), *A Fair Globalization: Creating Opportunities for All*, International Labour Office, Geneva, 168 pp.